

23CV05001 Mariette Wingard et al vs Santa Barbara County Board of Supervisors

County: santa-barbara

Division: Civil Law & Motion

Department: 4 SB-Anacapa

Hearing date: 2026-06-26

Motion: Motion: Attorney Fees

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Tentative Ruling: Mariette Wingard et al vs Santa Barbara County Board of Supervisors

Case Number

23CV05001

Case Type

Civil Law & Motion

Hearing Date / Time

Fri, 06/26/2026 - 10:00

Nature of Proceedings

Motion: Attorney Fees

Tentative Ruling

For the reasons set forth below, Defendant J. Blair Pence II's motion for award of attorneys' fees and costs pursuant to Code of Civil Procedure section 425.16, subdivision (c) is denied without prejudice.

Background/ Analysis:

This action commenced on November 9, 2023, by the filing of the complaint by plaintiffs Mariette Wingard (Wingard), Herbal Angels Inc. (Herbal), and Mary Fritz (Fritz) (collectively "plaintiffs"), against defendants J. Blair Pence II (Pence), Jordan Walker (Walker), Santa Barbara County Sheriff's Office (Sheriff), County of Santa Barbara (County), Santa Barbara County District Attorney's Office (DA), Santa Barbara County Building and Planning (Planning Dept.), Frank Vasquez (Vasquez), James Furber (Furber), John Savrnoch (Savrnoch), Joyce Dudley (Dudley), Anthony Davis (Davis), Morgan Lucas (Lucas), Lee Carter (Carter), and Christina Perkins (Perkins) (collectively "defendants") for: (1) Violations of due process rights; (2)

Abuse of process; (3) Illegal search and seizure; (4) Takings in violation of the prohibitions within the Federal and California Constitutions; (5) Conversion; (6) Trespass to chattel; (7) Conspiracy to deprive and violate Constitutional rights; (8) Monell violation of Civil Rights Policy Claim; (9) Malicious prosecution; (10) Malicious prosecution – resulting from civil litigation; (11) Violation of the right to privacy; (12) Defamation; (13) Intentional interference with economic prospective; (14) Civil conspiracy; and (15) Respondeat Superior. All of the individual defendants were, at all relevant times, employees of either Sheriff or DA.

As alleged in the complaint:

In March 2020, DA and Deputy DA Davis filed criminal charges against Wingard for cannabis cultivation without a license and possession of cannabis for sale without a license, on the basis that she was cultivating without a State cannabis cultivation license (Case No. 20CV02691). (Compl., ¶ 46.) Prior to filing the criminal charges against Wingard, “the County Actors” knew there was no basis to charge her. (Ibid.) Prior to filing the criminal charges against Wingard, “the County Actors” knew Herbal had active State cannabis cultivation licenses. (Ibid.) Prior to filing the criminal charges against Wingard, Sheriff and DA knew that cannabis cultivation took place at 2761 Cebada Canyon Road, Lompoc (the “property”) prior to January 19, 2016. (Ibid.)

Prior to November 9, 2022, two superior court judges disregarded the State cannabis cultivation licenses issued to Herbal, by authorizing search warrants and summarily denying Wingard’s demurrer to counts 3 and 4 of the criminal complaint. (Compl., ¶ 47.)

On November 9, 2022, following three years of litigation, Judge Adams ruled that Wingard was immune from arrest, prosecution, and asset forfeiture. (Compl., ¶ 48.) The court specifically ruled that Wingard was connected to Herbal, that Herbal possessed active State licenses at the time of the criminal investigation and raid, and that only the State has authority to issue, deny, suspend, or revoke State licenses. (Id. at ¶ 49.) The criminal charges were dismissed. (Id. at ¶ 50.) Despite the findings and dismissal of the criminal charges, the court continues to deny Wingard’s factual innocence. (Id. at ¶ 51.)

In September 2019, Sheriff began an “illegal” investigation of Herbal’s cultivation site without probable cause or reasonable suspicion. (Compl., ¶ 70.) Prior to investigating Herbal and Wingard, County, DA, and Sheriff had actual knowledge that Wingard was connected to Herbal, and that Herbal had the licenses needed to cultivate cannabis in Santa Barbara County. (Id. at ¶ 71.)

The investigation commenced when Walker was serving a search warrant at the property on September 14, 2019, and noticed “hoop houses” at the property. (Compl., ¶ 72.) Every fact uncovered by Walker after September 14, 2019, showed that Herbal was the cannabis operator at the property and that Herbal was a licensed cannabis cultivator with 12 active licenses issued by the State of California, and that Herbal and Avo Vista Farms, LLC were seeking zoning permits from Planning Dept. in accordance with the County’s cannabis ordinances. (Ibid.)

On December 13, 2019, and December 16, 2019, Walker filed an affidavit in support of a requested search warrant for the property, Wingard’s residence, the residence of a previous owner of Avo Vista Farms, and the office location for Avo Vista Farms, “for evidence of illegal cannabis cultivation, paraphernalia, records, proceeds and other evidence . . . which will . . . show that persons associated with this property are cultivating cannabis as a public offense, in violation of H.S. 11358(c).” (Compl., ¶ 73.) Walker stated in the warrant affidavit that Herbal, at the time, had 12 active State cannabis cultivation licenses that would remain active until May 2020. (Id. at ¶ 74.) A superior court judge signed the search warrants knowing that Herbal had 12 active State cultivation licenses that would remain active until May 2020. (Id. at ¶ 75.)

Sheriff, DA, and Davis fabricated evidence against Wingard and Herbal by failing to inform the court that the 12 active State cannabis cultivation licenses conferred absolute immunity from charges of cultivation without a license on Wingard and Herbal by informing the court that the State cannabis licenses were invalid despite knowing the State never investigated, disciplined, conditioned, suspended, or revoked the licenses, by concealing from the court and from Wingard prior cultivation at the property. (Compl., ¶ 76.) Planning and Sheriff colluded to “destroy” Herbal via the investigation. (Id. at ¶ 77.) Davis colluded with Sheriff to “destroy” Herbal via the investigation, and Davis colluded with Sheriff to fabricate evidence during the

investigation, search, and seizure of Wingard and Herbal. (Id. at ¶ 78.)

On December 16, 2019, Wingard, her infant daughter, her toddler daughter, and Wingard's mother Fritz left Wingard's residence in Wingard's family van. (Compl., ¶ 79.) Approximately one mile from her home, Wingard was pulled over and two law enforcement officers approached the vehicle, took Wingard's phone, and asked if there were any guns in the vehicle. (Ibid.) Shortly thereafter, two more officers arrived. (Ibid.) Fritz asked if she could leave and was told that she was being detained but was not told why. (Id. at ¶ 80.) An officer threatened Fritz and Wingard that Wingard's infant would likely be taken away from the family by children's services. (Id. at ¶ 81.) Wingard and Fritz informed the officers that the infant needed to nurse and could not be separated from Wingard, but the officer reiterated that the infant might be taken. (Ibid.)

Fritz, the infant, and the toddler were not the subject of the investigation or persons of interest. (Compl., ¶ 82.) Fritz asked to leave with Wingard's infant and toddler, but the officers refused to let her leave with the children. (Ibid.)

The officers searched and seized Fritz's belongings, including the money from her wallet, despite there being no evidence to indicate Fritz was in any way connected to the criminal investigation. (Compl., ¶ 83.) Sheriff still has Wingard's and Fritz's belongings and refuses to release them on the basis that they still must be retained as evidence of a crime. (Ibid.)

Eventually, Wingard was allowed to permit a friend to pick up the toddler. (Compl., ¶ 84.) After the toddler was picked up, the officers ordered Wingard to return to her residence with Fritz and the infant. (Ibid.) Fritz was still not allowed to leave. (Ibid.)

At Wingard's residence, Wingard, Fritz, and the infant were detained in the living room while officers searched the residence for several hours. (Compl., ¶ 85.) Fritz was not permitted to leave until the search was complete, and she was not told why she was being detained or allowed to see the search warrant. (Ibid.)

Sheriff found no evidence of cannabis cultivation without a license but, despite this fact, Sheriff seized \$206,418.72 from Herbal, Wingard, and Eli Sheiman (Sheiman), destroyed legally cultivated cannabis worth millions of dollars, and terrorized Wingard, Fritz, and Sheiman, as well as their two young children over the years. (Compl., ¶ 96.) Because County seized all of Wingard's funds, Fritz loaned Wingard \$130,000.00 for rent, food, clothing, medical bills, taxes, transportation, insurance, therapy, and preschool tuition. (Id. at ¶ 97.) Fritz was retired prior to the incident but went back to working full-time in 2020 to help support Wingard and Wingard's children. (Ibid.)

During its investigation and search and seizure of Wingard and Herbal, Sheriff destroyed over \$3,500,000.00 in lawfully cultivated cannabis, trade secrets, business property, and seized over \$200,000.00 from Herbal, as well as all of Herbal's business records. (Compl., ¶ 98.) The seizure and destruction of Herbal's assets destroyed the business, destroyed the business's goodwill and reputation within the community, and made any attempts to revive the business and its conditional use permit futile. (Id. at ¶ 99.)

Despite the criminal case against Wingard being dismissed on November 9, 2022, it took nearly a year for DA and Sheriff to return the funds seized from Wingard and Herbal. (Compl., ¶ 100.)

Davis and Sheriff colluded to destroy Herbal's conditional use permit. (Compl., ¶ 101.)

Wingard was charged with the misdemeanor crimes of cultivating more than six cannabis plants and possessing marijuana for sale. (Compl., ¶ 103.) Prior to the filing of the criminal complaint, DA and Sheriff were aware that Wingard was connected to Herbal, and that Herbal held active State cannabis cultivation licenses issued by the California Department of Agriculture Cannabis for the cultivation of marijuana at the property. (Ibid.)

What was presented as evidence in the criminal trial was the "false, manufactured, and fabricated" evidence by Davis, Walker, Vasquez, Perkins, Furber, Lucas, Carter, and the prosecutorial team. (Compl., ¶ 104.) Throughout the criminal

action, and continuing to the present, defendants have joined and participated in Davis's efforts to withhold and conceal exculpatory evidence that "would have unraveled the illegal case against Wingard." (Ibid.) Defendants' actions were part of defendants' long-standing conspiracy to frame Wingard and Herbal for crimes they did not commit. (Id. at ¶ 105.)

On August 12, 2020, Wingard demurred to the criminal complaint on the grounds that she was immune from arrest, prosecution, and asset forfeiture for cultivation and possession of cannabis without a license because she was connected to Herbal and Herbal held an active State license for cannabis cultivation. (Compl., ¶ 106.) On August 31, 2021, the court denied the demurrer. (Ibid.)

As the sole basis for the criminal charges against Wingard, DA "ruled" that the State licenses issued to Herbal were invalid. (Compl., ¶ 111.) County has no authority to suspend, issue, or revoke State cannabis licenses. (Ibid.)

DA and Sheriff engaged in interviews with the press and misstated facts in an effort to pressure Wingard and Herbal to waive their rights and to destroy their reputations with other businesses and the public. (Compl., ¶ 115.)

On November 21, 2025, a Special Motion to Strike (Anti-SLAPP) was granted in favor of County of Santa Barbara, Jordan Walker, Frank Vasquez, James Furber, John Savrnach, Joyce Dudley, Anthony Davis, Morgan Lucas, Lee Carter, and Kristina Perkins.

On December 12, 2025, an Anti-SLAPP motion was granted in favor of Pence.

Pence now seeks attorneys' fees and costs, pursuant to Code of Civil Procedure section 425.16, subdivision (c), in the amount of \$81,246.88 in fees and \$877.91 in costs.

Plaintiffs oppose the motion.

The original hearing date was May 15, 2026, but was continued to June 26, 2026 as follows:

"[T]he hearing on J. Blair Pence II's motion for award of attorneys' fees and costs is continued to June 26, 2026. J. Blair Pence II shall file and serve either verified billing invoices, which may be redacted to remove any truly privileged communications contained therein, or to provide a detailed summary, by way of declarations based on personal knowledge, of all time billed in the preparation and filing of the Anti-SLAPP motion no later than May 29, 2026. Plaintiffs shall file and serve any opposition, strictly limited to the invoices or summary, no later than June 12, 2026. Pence shall file and serve his reply, if any, no later than June 22, 2026." (May 15, 2026 Minute Order)

J. Blair Pence II did not file any documents since the May 15, 2026 hearing. As he has failed to meet his burden of establishing entitlement to an award of attorney fees or documenting the appropriate hours expended in preparation and filing of the Anti-SLAPP motion, the motion will be denied without prejudice.

Judges

Judge Donna D. Geck

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